

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3472 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____
Amendment submitted by: Dell Kerbs _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3472

By: Kerbs

FLOOR SUBSTITUTE

An Act relating to environment and natural resources; amending 27A O.S. 2021, Section 2-11-401.1, which relates to definitions; modifying definition; amending 27A O.S. 2021, Section 2-11-401.2, as amended by Section 21, Chapter 282, O.S.L. 2022 (27A O.S. Supp. 2025, Section 2-11-401.2), which relates to used tire recycling fee; requiring Oklahoma Tax Commission make certain notification; requiring certain refund requests be repaid in certain manner; amending 27A O.S. 2021, Section 2-11-401.4, which relates to compensation to facilities; authorizing Department of Environmental Quality discretion for the use of certain funds; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 27A O.S. 2021, Section 2-11-401.1, is amended to read as follows:

Section 2-11-401.1. As used in the Oklahoma Used Tire Recycling Act:

1. "ASTM" means the American Society for Testing and Materials;
2. "Automobile" means every motor vehicle of the type constructed and used for the transportation of ten (10) persons or

1 less, including the driver, or used for the transportation of
2 property. Provided, however, that the automobile's gross vehicle
3 weight rating does not exceed sixteen thousand (16,000) pounds;

4 3. "Automotive dismantler and parts recycler" means the same as
5 defined in Section 591.2 of Title 47 of the Oklahoma Statutes;

6 4. "Commission" means the Oklahoma Tax Commission;

7 5. "Department" means the Department of Environmental Quality;

8 6. "End use" means a Department-approved ultimate economic use
9 for a used tire or tire-derived product, including granulated
10 rubber, ground rubber, tire chips, tire-derived aggregate, tire-
11 derived fuel and tire shreds;

12 7. "Fund" means the Used Tire Recycling Indemnity Fund;

13 8. "Granulated rubber" means particulate rubber composed of
14 mainly nonspherical particles that span a broad range of maximum
15 particle dimensions, from below four hundred twenty-five thousandths
16 (0.425) of a millimeter (40 mesh) to twelve (12) millimeters (0.47
17 inches) pursuant to current ASTM standards;

18 9. "Ground rubber" means particulate rubber composed of mainly
19 nonspherical particles that span a broad range of maximum particle
20 dimensions, from below four hundred twenty-five thousandths (0.425)
21 of a millimeter (40 mesh) to two (2) millimeters (0.08 inches)
22 pursuant to current ASTM standards;

23 10. "Motorcycle" means a motor vehicle of a type defined in
24 Section 1-135 of Title 47 of the Oklahoma Statutes;

1 11. "Motor-driven cycle" means a motor vehicle of a type
2 defined in Section 1-136 of Title 47 of the Oklahoma Statutes;

3 12. "Motor vehicle" means the same as defined in Section 1-134
4 of Title 47 of the Oklahoma Statutes;

5 13. "Priority cleanup list" means a list, created and
6 maintained by the Department, of:

7 a. unpermitted dumps which did not exist when the owner
8 took possession of the property where the tires are
9 located, and were created without the consent of or
10 benefit to the owner of the property, and

11 b. such other tire dumps designated by the Department
12 pursuant to Section 2-11-401.6 of this title;

13 14. "Reusable tire" means a tire that has been previously used
14 on a vehicle, not currently mounted on a vehicle, but can be legally
15 placed into service for vehicle use in Oklahoma;

16 15. "Semitrailer" means the same as defined in Section 1-162 of
17 Title 47 of the Oklahoma Statutes;

18 16. "Tire" means any solid or air-filled covering for vehicle
19 wheels;

20 17. "Tire chips" means pieces of scrap tires that have a basic
21 geometrical shape and are generally between twelve (12) millimeters
22 (0.47 inches) and fifty (50) millimeters (1.97 inches) in size and
23 have most of the wire removed pursuant to current ASTM standards;

1 18. "Tire dealer" means any person engaged in the business of
2 selling new and used tires to final consumers, not for resale;

3 19. "Tire-derived aggregate" means pieces of scrap tires that
4 have a basic geometrical shape and are generally between twelve (12)
5 millimeters (0.47 inches) and three hundred five (305) millimeters
6 (12.01 inches) in size and are intended for use in civil engineering
7 applications pursuant to ASTM standards;

8 20. "Tire-derived fuel" means whole tires or processed tires
9 that can be used for energy or fuel recovery pursuant to current
10 ASTM standards;

11 21. "Tire-derived fuel facility" or "TDF facility" means a
12 facility that uses processed tires or whole used tires for energy or
13 fuel recovery;

14 22. "Tire-derived product" means matter that:

- 15 a. is derived from a process that uses whole tires as a
16 feedstock, including chipping for the purpose of fuel
17 recovery, granulating and grinding,
- 18 b. adheres to established engineering or other
19 appropriate specifications or to established product
20 end-user specifications or customer conditions of
21 acceptance,
- 22 c. has a demonstrated benefit associated with the end
23 use, and

d. can be used as a substitute for or in conjunction with
a commercial product or raw material;

23. "Tire shreds" means pieces of scrap tires that have a basic
geometrical shape and are generally between fifty (50) millimeters
(1.97 inches) and three hundred five (305) millimeters (12.01
inches) in size pursuant to current ASTM standards;

24. "Trailer" means the same as defined in Section 1-180 of
Title 47 of the Oklahoma Statutes;

25. "Used tire" means an unprocessed whole tire or tire part
that can no longer be used for its originally intended purpose but
can be beneficially reused as approved by the Department. Any used
tire collected in accordance with the requirements of the Oklahoma
Used Tire Recycling Act is not considered to be discarded. A tire
that can be used, reused or legally modified to be reused for its
original intended purpose shall not be a used tire;

26. "Used tire processing" means altering the form of whole
used tires by shredding, chipping or other method approved by the
Department, except baling ~~and pyrolysis~~. For purposes of this act
only, tire pyrolysis shall, for a five-year period ending on July 1,
2031, meet the definition of used tire processing until July 1,
2031, but not thereafter. Any tire pyrolysis facility shall not be
considered an advanced recycling facility but rather a used tire
recycling facility and subject to all applicable statutes and rules
for such facilities;

1 27. "Used tire recycling facility" means any place which is
2 permitted as a solid waste disposal site, in accordance with the
3 Oklahoma Solid Waste Management Act, at which used tires are
4 processed; and

5 28. "Vehicle" means the same as defined in Section 1-186 of
6 Title 47 of the Oklahoma Statutes.

7 SECTION 2. AMENDATORY 27A O.S. 2021, Section 2-11-401.2,
8 as amended by Section 21, Chapter 282, O.S.L. 2022 (27A O.S. Supp.
9 2025, Section 2-11-401.2), is amended to read as follows:

10 Section 2-11-401.2. A. 1. Except as otherwise provided by
11 this section, the following assessments shall be made for tires for
12 use on vehicles:

13 a. at the time any tire:

- 14 (1) for an automobile as defined in the Oklahoma Used
15 Tire Recycling Act or a tire with a rim diameter
16 of less than or equal to nineteen and one-half
17 (19 1/2) inches is sold by a tire dealer, there
18 shall be assessed a used tire recycling fee of
19 Two Dollars and ninety cents (\$2.90) per tire,
20 (2) for vehicles other than automobiles as defined by
21 the Oklahoma Used Tire Recycling Act with a rim
22 diameter greater than nineteen and one-half (19
23 1/2) inches and a tread width of twelve (12)
24 inches or less is sold by a tire dealer, there

1 shall be assessed a used tire recycling fee of
2 Five Dollars and fifty cents (\$5.50) per tire,
3 (3) with a rim diameter greater than nineteen and
4 one-half (19 1/2) inches and a tread width of
5 greater than twelve (12) inches is sold by a tire
6 dealer, there shall be assessed a used tire
7 recycling fee of Ten Dollars (\$10.00) per tire,
8 and

9 (4) is sold by a tire dealer for use on a motorcycle
10 or motor-driven cycle, there shall be assessed a
11 used tire recycling fee of One Dollar (\$1.00) per
12 tire,

13 b. at any time an automobile as defined by the Oklahoma
14 Used Tire Recycling Act or a motor vehicle with a tire
15 rim diameter of less than or equal to nineteen and
16 one-half (19 1/2) inches is first registered in this
17 state, there shall be assessed a used tire recycling
18 fee of Two Dollars and ninety cents (\$2.90) per tire,
19 except as otherwise provided by subparagraphs e and f
20 of this paragraph,

21 c. at any time a vehicle other than an automobile as
22 defined by the Oklahoma Used Tire Recycling Act with a
23 tire rim diameter of greater than nineteen and one-
24 half (19 1/2) inches is first registered in this

1 state, there shall be assessed a used tire recycling
2 fee of Five Dollars and fifty cents (\$5.50) per tire,
3 except as otherwise provided by subparagraphs e, f and
4 g of this paragraph,

5 d. at any time a trailer or semitrailer with a tire rim
6 diameter of less than or equal to nineteen and one-
7 half (19 1/2) inches is first titled in this state,
8 there shall be assessed a used tire recycling fee of
9 Two Dollars and ninety cents (\$2.90) per tire,

10 e. at any time a motorcycle or motor-driven cycle is
11 first registered in this state, there shall be
12 assessed a used tire recycling fee of One Dollar
13 (\$1.00) per tire,

14 f. at the time a motor vehicle is first titled in this
15 state, to be registered under the provisions of
16 Section 1120 of Title 47 of the Oklahoma Statutes,
17 there shall be assessed a used tire recycling fee of
18 Seven Dollars (\$7.00), and

19 g. at the time a trailer or semitrailer is first titled
20 in this state, to be registered under the provisions
21 of Section 1133 of Title 47 of the Oklahoma Statutes,
22 there shall be assessed a used tire recycling fee of
23 Five Dollars (\$5.00).
24

1 2. No fee shall be assessed by a tire dealer for reusable tires
2 or retreaded tires for which the tire dealer can document that the
3 recycling fee has been previously paid.

4 3. All-terrain vehicles and off-road motorcycles registered
5 pursuant to the provisions of Section 1132 of Title 47 of the
6 Oklahoma Statutes shall be exempt from the provisions of this
7 section.

8 B. 1. For tires used on implements of husbandry and
9 agricultural equipment with a rim diameter of less than or equal to
10 nineteen and one-half (19 1/2) inches and that are less than thirty
11 (30) inches in total diameter, there shall be assessed a used tire
12 recycling fee of Two Dollars and ninety cents (\$2.90) per tire.

13 2. For tires used on implements of husbandry and agricultural
14 equipment with a rim diameter of greater than nineteen and one-half
15 (19 1/2) inches and that are less than thirty (30) inches in total
16 diameter, there shall be assessed a used tire recycling fee of Five
17 Dollars and fifty cents (\$5.50) per tire.

18 3. For tires used on implements of husbandry and agricultural
19 equipment that are greater than thirty (30) inches in total diameter
20 and less than or equal to forty-four (44) inches in total diameter,
21 there shall be assessed a used tire recycling fee of Eight Dollars
22 (\$8.00) per tire. No fee shall be assessed by a tire dealer if the
23 customer retains the used agricultural tire for use on a farm or
24

1 ranch. The customer may return the used tire to the tire dealer at
2 a later date and shall be assessed the proper fee.

3 4. For tires used on implements of husbandry and agricultural
4 equipment that are greater than forty-four (44) inches in total
5 diameter and less than or equal to seventy-two (72) inches in total
6 diameter and not more than thirty (30) inches wide, there shall be
7 assessed a used tire recycling fee of Sixteen Dollars (\$16.00) per
8 tire. No fee shall be assessed by a tire dealer if the customer
9 retains the used agricultural tire for use on a farm or ranch. The
10 customer may return the used tire to the tire dealer at a later date
11 and shall be assessed the proper fee.

12 5. A tire dealer may pay the assessed fee for any used
13 agricultural tire in current inventory and include that tire in the
14 used tire recycling program.

15 C. 1. The tire dealer and licensed operator shall remit such
16 fee to the Oklahoma Tax Commission in the same manner as provided by
17 Section 1365 of Title 68 of the Oklahoma Statutes.

18 2. Except as otherwise provided by this section, the tire
19 dealer shall remit to the Tax Commission ninety-seven and three-
20 quarters percent (97.75%) of the fee due pursuant to this section at
21 the time of filing any report as required by the Tax Commission.

22 3. Licensed operators shall remit ninety percent (90%) of the
23 fee assessed on each vehicle registered.

1 4. Failure to remit the fee at the time of filing the returns
2 shall cause the fee to become delinquent. If the fee becomes
3 delinquent the tire dealer or licensed operator forfeits any claim
4 to the discount authorized by this section and shall remit to the
5 Tax Commission one hundred percent (100%) of the amount of the fee
6 due plus any penalty due.

7 D. If the fee imposed or levied by subsection A of this
8 section, or any part of such amount, is not paid before the fee
9 becomes delinquent, there shall be collected on the total delinquent
10 fee interest at the rate of one and one-quarter percent (1 1/4%) per
11 month from the date of the delinquency until paid.

12 E. If any fee due under subsection A of this section, or any
13 part thereof, is not paid within fifteen (15) days after the fee
14 becomes delinquent, a penalty of ten percent (10%) on the total
15 amount of fee due and delinquent shall be added and paid.

16 F. All penalties or interest imposed by this section shall be
17 recoverable by the Tax Commission as a part of the fee imposed and
18 all penalties and interest shall be apportioned the same as the fee
19 on which the penalties or interest are collected.

20 G. In the event that a refund request is made that is
21 associated with an overpayment of fees over a time period greater
22 than one (1) month in length, even if overpayments were not made in
23 consecutive months, the Tax Commission shall notify the Department
24 of any such refund requests that have been reviewed and approved by

1 the Tax Commission, and shall inform the Department, in writing, of
2 the total dollar amount of the approved refund and the length of
3 time, in months, over which the overpayment occurred. Any refund
4 request under this subsection that has been reviewed and approved by
5 the Tax Commission shall be repaid by a credit against future
6 remittances by that tire dealer to the Used Tire Indemnity Fund to
7 be applied over the same length of time the overpayment of fees.

8 SECTION 3. AMENDATORY 27A O.S. 2021, Section 2-11-401.4,
9 is amended to read as follows:

10 Section 2-11-401.4. A. Compensation to used tire facilities
11 and tire-derived fuel or TDF facilities pursuant to this section
12 shall be limited to facilities located in Oklahoma. Compensation
13 for used tire activities pursuant to this section shall be limited
14 to used tires from Oklahoma. A used tire recycling facility or
15 tire-derived fuel or TDF facility may transport and deliver used
16 tires collected from Oklahoma to an out-of-state used tire recycling
17 facility or TDF facility but shall not be eligible for compensation
18 from the Used Tire Recycling Indemnity Fund for those used tires.
19 To be eligible, applicants for compensation shall be in compliance
20 with the Oklahoma Used Tire Recycling Act.

21 B. The monies accruing annually to the Used Tire Recycling
22 Indemnity Fund shall be allocated first to the Department of
23 Environmental Quality Revolving Fund, to be used for implementing
24 applicable requirements related to the control of mobile and area

1 sources of air emissions, for monitoring and modeling the impacts on
2 Oklahoma of air pollution from other states, for implementing and
3 enforcing other applicable air pollution control requirements or for
4 other environmental programs or projects. The amount of money
5 allocated for this purpose shall be twenty-four and one-tenth
6 percent (24.1%) of the funds produced by the two-dollar-and-ninety-
7 cent per tire fee assessed pursuant to division (1) of subparagraph
8 a of paragraph 1 of subsection A of Section 2-11-401.2 of this title
9 and subparagraph b of paragraph 1 of subsection A of Section 2-11-
10 401.2 of this title; provided, in no event shall the amount
11 allocated annually exceed the 3-year average of the total fiscal
12 year amounts allocated in fiscal years 2015, 2016 and 2017 and any
13 amount in excess of the 3-year average shall be placed to the credit
14 of the General Revenue Fund. After this allocation is deducted, the
15 balance of the monies shall be allocated as follows:

16 1. Two and one-fourth percent (2.25%), not to exceed Twenty
17 Thousand Dollars (\$20,000.00) per month, to the Oklahoma Tax
18 Commission and five and three-fourths percent (5.75%), not to exceed
19 Fifty Thousand Dollars (\$50,000.00) per month, to the Department of
20 Environmental Quality for the purpose of administering the
21 requirements of the Oklahoma Used Tire Recycling Act; provided, in
22 no event shall either of the amounts allocated annually pursuant to
23 this paragraph exceed the 3-year average of the total fiscal year
24 amounts allocated in fiscal years 2015, 2016 and 2017 and any amount

1 in excess of the 3-year average shall be placed to the credit of the
2 Used Tire Recycling Indemnity Fund; and

3 2. An amount not to exceed Fifty Thousand Dollars (\$50,000.00)
4 per audit to the State Auditor and Inspector for the purpose of
5 conducting audits of the Oklahoma Used Tire Recycling Program
6 pursuant to Section 2-11-401.6 of this title.

7 C. After the allocations under subsection B of this section are
8 made, the balance of monies in the Fund shall be available for
9 compensation pursuant to the provisions of the Oklahoma Used Tire
10 Recycling Act as follows:

11 1. Compensation to used tire facilities for used tire
12 processing, at the rate of Fifty-four Dollars (\$54.00) per ton of
13 processed tire material. For compensation the following conditions
14 shall apply:

15 a. facilities that process used tires by altering the
16 form of the used tires but do not produce tire-derived
17 product shall not receive compensation until the
18 facility documents the sale and movement of the
19 processed used tire material off-site to a third
20 party,

21 b. facilities shall report and certify used tire
22 processing activity in terms of weight. The facility
23 shall by sworn affidavit provide to the Department
24 sufficient information to verify that the facility has

1 processed used tires and sold processed used tires for
2 actual recycling or reuse in accordance with the
3 purposes of the Oklahoma Used Tire Recycling Act, and
4 c. to be eligible for compensation, a facility shall not
5 have accumulated more processed material than the
6 amount for which the facility has provided financial
7 assurance under its solid waste permit or the amount
8 accumulated from three (3) years of operation,
9 whichever is less;

10 2. a. Compensation to used tire recycling facilities or TDF
11 facilities at the rate of Fifty-three Dollars (\$53.00)
12 per ton of whole used tires for the collection and
13 transportation of used tires from Oklahoma tire
14 dealers, automotive dismantlers and parts recyclers,
15 solid waste landfill sites, and dumps certified by the
16 Department priority cleanup list, and delivering the
17 tires to a used tire recycling facility or TDF
18 facility. The collection and transportation of used
19 tires shall be provided by the used tire recycling
20 facility or TDF facility at no additional cost to the
21 tire dealer or automotive dismantler and parts
22 recycler or to the Fund. The used tire recycling
23 facility or TDF facility shall collect from any
24

1 location at which there are at least three hundred
2 used tires.

3 b. Compensation under this paragraph shall not be payable
4 until the used tires have been actually processed
5 according to the solid waste permit for the facility
6 or actually used for energy or fuel recovery. A TDF
7 facility that collects and transports whole used tires
8 shall be eligible for compensation under this
9 paragraph only for those whole used tires consumed by
10 that facility.

11 c. No tire dealer shall charge any customer any
12 additional fee for the management, recycling, or
13 disposal of any used tire upon which the used tire
14 recycling fee has been remitted to the Tax Commission.
15 For customers who choose not to leave a used tire upon
16 which the used tire recycling fee has been remitted to
17 the Tax Commission, the tire dealer shall issue a
18 receipt which entitles the customer to deliver the
19 used tire to the dealer at a later date.

20 d. To be eligible for compensation pursuant to this
21 paragraph, the used tire recycling facility or TDF
22 facility shall:

23 (1) demonstrate to the satisfaction of the Department
24 that the facility is regularly engaged in the

1 collection, transportation and delivery of used
2 tires to a used tire recycling facility or to a
3 TDF facility, on a statewide basis, and from each
4 county of the state,

5 (2) provide documentation to the Department, signed
6 by a dealer at the time of collection, which
7 certifies remittance of appropriate fees to the
8 Oklahoma Tax Commission as a participating tire
9 dealer pursuant to the provisions of the Oklahoma
10 Used Tire Recycling Act, and

11 (3) annually demonstrate that at least three to six
12 percent (3-6%) of the tires were collected from
13 tire dumps or landfills on the Department
14 priority cleanup list or community-wide cleanup
15 events approved by the Department. The
16 Department is authorized to determine
17 periodically the applicable percentage within the
18 specified range set forth in this division based
19 on the number of tires remaining in illegal dumps
20 and available funding.

21 e. In lieu of proof of remitted tire recycling fees, the
22 used tire recycling facility or TDF facility shall
23 accept proof of purchase of a salvage vehicle
24 registered in Oklahoma by an automotive dismantler and

1 parts recycler, licensed pursuant to the Automotive
2 Dismantlers and Parts Recycler Act, for the collection
3 and transportation of up to five used tires per
4 salvage vehicle purchased on or after January 1, 1996;

- 5 3. a. Compensation to a unit of local or county government
6 that submits to the Department for approval a plan for
7 the use of baled used tires in an engineering project.
8 Compensation shall be at the rate of fifty cents
9 (\$0.50) per tire.
- 10 b. The plan shall be approved by the Department before
11 construction of the project begins.
- 12 c. Any unit of local or county government baling used
13 tires shall not accumulate more than fifty used tire
14 bales prior to beginning construction of an approved
15 project.
- 16 d. Used tires baled pursuant to this paragraph cannot be
17 obtained from tire manufacturers, retailers,
18 wholesalers, retreaders, or automotive dismantlers and
19 parts recyclers.
- 20 e. Any unit of local or county government authorized to
21 receive reimbursement for the use of baled used tires
22 in an engineering project shall report and certify
23 whole used tires by number. The governmental unit
24 shall by sworn affidavit provide sufficient

1 information to the Department to verify that the unit
2 has utilized the tires in accordance with the purposes
3 of the Oklahoma Used Tire Recycling Act; and

4 4. If the Fund contains insufficient funds in any month to
5 satisfy the eligible reimbursements under this subsection, the
6 Department shall determine the apportionment of payments to be made
7 among the qualified applicants under this subsection according to
8 the percentage of used tires processed, collected and transported,
9 or utilized.

10 D. 1. After the allocations under subsections B and C of this
11 section are made, any remaining monies in the Fund shall be
12 available for TDF facilities and used tire recycling facilities that
13 produce tire-derived product for compensation at the rate of Twenty-
14 nine Dollars (\$29.00) per ton of processed or used tires utilized
15 for energy or fuel recovery or the production of tire-derived
16 product.

17 2. The production of tire-derived product shall be considered a
18 compensable event separate from and in addition to any compensation
19 for used tire processing under subsection C of this section.

20 3. TDF facilities and used tire recycling facilities authorized
21 to receive reimbursement under this subsection shall report and
22 certify tire material used by weight.

23 4. The facilities shall by sworn affidavit provide to the
24 Department sufficient information to verify that the facility has

1 used the tires in accordance with the purposes of the Oklahoma Used
2 Tire Recycling Act.

3 5. If the Fund contains insufficient funds in any month to
4 satisfy the eligible reimbursements under this subsection, the
5 Department shall determine the apportionment of payments to be made
6 among the qualified applicants according to the percentage of used
7 tires intended for energy or fuel recovery or the production of
8 tire-derived product.

9 E. 1. After the allocations under subsections B, C and D of
10 this section are made, any remaining monies in the Fund shall be
11 available for capital investment reimbursement to used tire
12 facilities and TDF facilities for the purchase of equipment
13 necessary to utilize used tires. Only equipment purchased on or
14 after January 1, 1995, shall be eligible. The facilities are
15 eligible for compensation at a rate of Twenty Dollars (\$20.00) per
16 ton of used tires used. Total reimbursement shall not exceed one
17 hundred percent (100%) of the capital investment in eligible
18 equipment. The facilities may apply for compensation monthly to the
19 Department of Environmental Quality and shall supply any information
20 required by the Department.

21 2. If the Fund contains insufficient funds in any month to
22 satisfy the eligible reimbursements under this subsection, the
23 Department shall determine the apportionment of payments to be made
24 among the qualified applicants.

1 F. Subject to subsection G of this section, after the
2 allocations under subsections B, C, D and E of this section are
3 made, any remaining monies in the Fund, excluding monies collected
4 pursuant to paragraphs 3 and 4 of subsection B of Section 2-11-401.2
5 of this title, shall be disbursed as follows:

6 1. Additional compensation to used tire recycling facilities or
7 TDF facilities for the remediation of dumps certified by the
8 Department and delivering the tires to a used tire recycling
9 facility or a TDF facility. The Department shall determine
10 additional compensation made to qualified applicants under this
11 subsection based on cleanup feasibility of the dump. The Board
12 shall promulgate rules establishing unit costs for compensation
13 based on the remediation feasibility of the tire dumps. The
14 Department may solicit bids for the remediation of tire dumps if no
15 used tire recycling facilities or TDF facilities agree to remediate
16 a priority tire dump authorized by the Department or if the
17 Department determines the qualified applicant has not remediated the
18 tires in the tire dump to meet reference conditions of comparable
19 property in the immediate area; and

20 2. Reimbursement to the Department of Environmental Quality for
21 necessary costs associated with remediation or other necessary
22 actions at sites at which used tires or other wastes incidental to
23 the used tires present a threat to human health or environment, or
24 for projects to increase market demand for products made from

1 Oklahoma used tires. The Solid Waste Management Advisory Council
2 shall recommend and the Environmental Quality Board shall adopt
3 rules governing the types of market development projects that may
4 qualify for reimbursement. To the extent possible, the rules shall
5 favor and the Department shall prioritize projects with the greatest
6 potential to benefit schools, communities and local governments.
7 Upon its receipt of documentation from the Department showing
8 expenditures relating to the remediation of such sites or market
9 development projects, the Tax Commission shall reimburse the
10 Department for its documented expenditures.

11 G. Accrued funding for the purposes specified in subsection F
12 of this section shall not exceed Five Hundred Thousand Dollars
13 (\$500,000.00). Once Five Hundred Thousand Dollars (\$500,000.00) is
14 reached, any additional funds shall be distributed as additional
15 compensation under paragraph 1 of subsection C of this section. The
16 Department may, at its discretion:

17 1. Direct that accrued funding limit for the purposes of
18 subsection F of this section be set below Five Hundred Thousand
19 Dollars (\$500,000.00), but only temporarily for a period of time up
20 to but not exceeding six (6) months out of any twelve-month period
21 of time, after which the accrued funding limit shall be restored to
22 Five Hundred Thousand Dollars (\$500,000.00); and

23 2. Utilize funding accrued as a result of subsection F to
24 mitigate funding shortfalls that are associated with a tax

1 overpayment and credit as described in paragraph G of Section 2-11-
2 401.2 of this title.

3 H. 1. Used tire recycling facilities and TDF facilities that
4 collect, transport and process tires used on implements of husbandry
5 and agricultural equipment that are greater than thirty (30) inches
6 in total diameter and less than or equal to forty-four (44) inches
7 in total diameter shall be eligible for compensation at a rate of
8 Eight Dollars (\$8.00) per tire.

9 a. Collection, transportation and processing of tires
10 under this paragraph shall be considered a compensable
11 event separate from and in addition to any
12 compensation under subsection C of this section.

13 b. Used tire recycling facilities and TDF facilities
14 authorized to receive reimbursement under this
15 paragraph shall report and certify the number of tires
16 collected and transported.

17 2. Used tire recycling facilities and TDF facilities that
18 collect, transport and process tires used on implements of husbandry
19 and agricultural equipment that are greater than forty-four (44)
20 inches in total diameter and less than or equal to seventy-two (72)
21 inches in total diameter and not more than thirty (30) inches wide,
22 shall be eligible for compensation at the rate of Sixteen Dollars
23 (\$16.00) per tire.

1 a. Collection, transportation and processing of tires
2 under this paragraph shall be considered a compensable
3 event separate from and in addition to any
4 compensation under subsection C of this section.

5 b. Used tire recycling facilities and TDF facilities
6 authorized to receive reimbursement under this
7 paragraph shall report and certify the number of tires
8 collected and transported.

9 I. Used tire recycling facilities, TDF facilities, or persons,
10 corporations or other legal entities authorized by the provisions of
11 the Oklahoma Used Tire Recycling Act to receive reimbursement shall
12 demonstrate that the facilities or legal entities have successfully
13 complied with the requirements of the Oklahoma Used Tire Recycling
14 Act through the filing of appropriate applications, reports, and
15 other documentation that may be required by the Tax Commission and
16 the Department.

17 SECTION 4. This act shall become effective November 1, 2026.

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19 60-2-17204 JBH 03/23/26
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